

**SUBSTITUTE FOR
HOUSE BILL NO. 6033**

A bill to amend 1961 PA 236, entitled
"Revised judicature act of 1961,"
by amending section 2559 (MCL 600.2559), as amended by 2023 PA 35.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2559. (1) Except as provided in subsection (7), ~~or~~ (9),
2 **or (10)**, the following is the schedule of fees allowed for process
3 or papers served out of a court in this state by a person
4 authorized under this act or supreme court rule to serve process:

5 (a) For personal service of a summons and complaint in a civil
6 action, along with supporting documents, for each defendant, ~~\$26.00~~
7 **\$38.00** plus mileage.

8 (b) For personal service of an affidavit and account, for each
9 defendant, ~~\$26.00~~ **\$38.00** plus mileage.



(c) For a request for and writ of garnishment, for each garnishee and defendant, ~~\$23.00~~ **\$35.00** plus mileage.

(d) For personal service of an order to seize goods that are the subject of a claim and delivery action, ~~\$40.00~~ **\$55.00** plus mileage, plus the actual and reasonable expense of seizing, keeping, and delivering the goods.

(e) For receiving and filing a bond from or on behalf of a defendant in a claim and delivery action, ~~\$20.00~~ **\$30.00**.

(f) For an order to show cause, for each person served, ~~\$26.00~~ **\$38.00** plus mileage.

(g) For a subpoena on discovery, for each person served, ~~\$26.00~~ **\$38.00** plus mileage.

(h) For levying under or serving an order for the seizure of property and any accompanying paper, ~~\$40.00~~ **\$55.00** plus mileage, plus the actual and reasonable expense of seizing and keeping the property under the order.

(i) If the person has seized property under an order for the seizure of property **that was** issued in an action in which a judgment is entered against the owner of the property, regardless of whether the judgment is entered before or after the order is issued, and if the judgment is satisfied before sale of the seized property by full payment of the judgment or settlement between the parties, ~~7%~~ **10%** of the first ~~\$8,000.00~~ **\$10,000.00** of the payment or settlement amount and ~~3%~~ **5%** of the payment or settlement amount exceeding the first ~~\$8,000.00~~ **\$10,000.00**.

(j) For sale of property seized under an order for the seizure of property, ~~7%~~ **10%** of the first ~~\$8,000.00~~ **\$10,000.00** in receipts and ~~3%~~ **5%** of any receipts exceeding the first ~~\$8,000.00~~ **\$10,000.00**.

(k) For each notice of sale under an order for the seizure of



property or construction lien posted in a public place in the city or township, ~~\$26.00~~**\$38.00** plus mileage.

(l) For an order of eviction or a writ for the restitution of premises, for each defendant, ~~\$40.00~~**\$55.00** plus mileage, plus the actual and reasonable expense for the physical removal of property from the premises.

(m) For a subpoena directed to a witness, including a judgment debtor, ~~\$26.00~~**\$38.00** plus mileage.

(n) For a civil bench warrant or body execution, ~~\$40.00~~**\$50.00** plus mileage, plus a reasonable fee per hour for the amount of time involved in executing the warrant.

(o) For service by mail, ~~\$13.00~~**\$18.00** plus the actual cost of postage.

(p) For each verification by a process server, ~~\$10.00~~**\$15.00** plus mileage.

(q) For each postal change of address verification requested by the plaintiff, ~~\$10.00~~**\$15.00**.

(r) For each global positioning service verification, ~~requested by the plaintiff,~~ \$5.00.

(s) For each photo verification requested by the plaintiff, ~~\$5.00~~**\$10.00**.

(t) If the person serving process is required to print or otherwise reproduce a document to make or attempt to make the service, 25 cents for each page.

(u) If the person serving process is required to electronically file anything in connection with the service or attempted service, \$5.00 for each electronic filing.

(2) On submitting a sworn affidavit, a person authorized by this act or supreme court rule to serve process or papers out of a



1 court in this state is entitled to receive a ~~\$10.00~~**\$15.00** fee plus
2 mileage for each process that has an incorrect address. This fee is
3 in addition to any fee the person is entitled to receive under
4 subsection (1). **Mileage must be reimbursed for each trip required**
5 **by the court.**

6 (3) Mileage is allowed under subsection (1) at 1-1/2 times the
7 rate allowed by the state civil service commission for employees in
8 the state classified civil service. Mileage is computed, each way,
9 using the shortest reasonable route from the place where the court
10 that issued or filed the process or paper is located to the place
11 of service.

12 (4) The fees and expenses allowed under subsection (1)(h) to
13 (k) must be collected in the same manner as the sum directed to be
14 levied or collected under the order for the seizure of property. If
15 at the time of advertising property for sale a sheriff or other
16 officer has several orders for the seizure of property against the
17 same defendant, the sheriff or officer shall charge only 1
18 advertising fee on the whole, and shall elect on which order ~~he or~~
19 ~~she~~ **the sheriff or other officer** will receive the fee.

20 (5) A person authorized by this act or supreme court rule to
21 serve process or papers out of a court in this state who demands
22 and receives a greater fee or compensation for performing a service
23 mentioned in this section than allowed by this section is, in
24 addition to all other liability provided by law, liable to the
25 party injured by paying the illegal fees for 3 times the amount of
26 illegal fees actually paid and all costs of the action.

27 (6) A sheriff or other officer who, after the fees specified
28 by this section have been tendered, neglects or refuses a service
29 required by law is liable to the party injured for all damages that



1 the party sustains as a result of the neglect or refusal.

2 (7) A person authorized under this act or supreme court rule
3 to serve process may charge a fee for service of process that
4 exceeds the fee prescribed under this section or other law if the
5 fee is agreed to in advance in writing by the person serving
6 process and the person requesting the service.

7 (8) Regardless of whether a fee charged or paid for service of
8 process exceeds the fee prescribed by this section or other law,
9 including a fee allowed under subsection (7), a person entitled to
10 tax costs shall not attempt to tax and is not entitled to recover a
11 fee for service of process that exceeds the fee prescribed by this
12 section or other law.

13 (9) A person shall not charge or collect a fee for serving
14 process issued in an action brought under the extreme risk
15 protection order act, **2023 PA 38, MCL 691.1801 to 691.1821**, or for
16 serving any order issued in the action.

17 **(10) To ensure compliance with section 40121 of the violence**
18 **against women act of 1994, 34 USC 10450, it is the intent of the**
19 **legislature to fully fund reimbursement under this subsection. If**
20 **money in the personal protection order service fund created in**
21 **section 2950p is not fully expended, a court or law enforcement**
22 **agency shall not charge or collect from the petitioner a fee for**
23 **serving a court document listed in this subsection in a proceeding**
24 **for a personal protection order under section 2950 or 2950a, or a**
25 **foreign protection order as defined in section 2950h. However, a**
26 **law enforcement agency required to serve the court document may**
27 **charge and collect the greater of \$50.00 or \$26.00 plus mileage as**
28 **provided under subsection (3) for completed service from the**
29 **personal protection order service fund created in section 2950p.**



The law enforcement agency shall not charge or collect more than the applicable amount allowed under this subsection for service of multiple documents at the same time. A law enforcement agency may contract with a process server to serve court documents listed under this subsection. Notwithstanding this subsection, service may be made by a legally competent adult who is not a party to the action. This subsection applies to all of the following, and to any accompanying documents:

(a) A petition for a personal protection order.

(b) A personal protection order.

(c) A notice of hearing.

(d) A subpoena or order to appear for a witness.

(e) A motion to show cause.

(f) An order to appear on a show cause motion.

(11) ~~(10)~~—As used in this section, "order for the seizure of property" includes a writ of attachment and a writ of execution, including, but not limited to, execution in a claim and delivery action on property other than the property that is the subject of the claim and delivery action.

Enacting section 1. This amendatory act does not take effect unless all of the following bills of the 103rd Legislature are enacted into law:

(a) House Bill No. 5120.

(b) House Bill No. 5121.

